—and how to create a climate where the life and liberty of a fellow citizen could not be sacrificed at the altar of national chauvinism. This appeared an impossible task even when some of the country's most prominent citizens formed themselves into the All India Defence Committee for S.A.R. Geelani.

We will leave it to history to judge whether Geelani and the other three accused were given a fair trial in the designated court. In the defence committee's view the judge, S.N. Dhingra, made no effort to mask his prejudice, forcing teachers of Delhi University and Jawaharlal Nehru University to write an open letter to the Chief Justice of the Supreme Court to ensure a fair trial for Geelani.

The designated court sentenced Geelani and two of his co-accused to death even as the fourth accused, Navjot (Afsan) Guru, was given five years.[4] A mob burst crackers outside the courtroom to celebrate the event. The members of the Special Branch, in pressed suits and polished shoes, could not stop smiling; they had become national heroes.

At the time it seemed virtually certain that an innocent citizen would hang. Could there be any greater shame for a country that called itself the largest democracy in the world? The trial exposed how easily patriotism could be twisted to serve the needs of those who wanted fascism to triumph in this country, my country.

I felt a deep, burning shame when I heard how members of the Special Branch had urinated on Afzal and Shaukat, how the lower court judge had mocked the pregnant Navjot, and that the jail authorities had prevented Geelani from offering namaz during Id. What greater proof of our dehumanization than when a man condemned to death is denied even his right to worship? Surprisingly, the National Human Rights Commission did not react. The media indulged in defamation with impunity, throwing all journalistic ethics to the wind. Political parties committed to democratic and secular values of our constitution did not raise their voice against the denial of fair trial to the four accused; they did not even react when an attempt was made on Geelani's life in jail. All this in the name of nationalism.

Geelani heard the death sentence on 18 December 2001. When asked for his reaction, he responded quietly, calmly, with great dignity and political clarity: 'By convicting innocents you cannot suppress feelings. Peace comes with justice. Without justice there will be no democracy. It is Indian democracy that is under threat.'